

## **TITLE 468 - AID TO DEPENDENT CHILDREN**

### **CHAPTER 4 - EMPLOYMENT FIRST SELF-SUFFICIENCY PROGRAM (EF)**

**001. PURPOSE.** The primary purpose of Employment First is to provide temporary, transitional support for Nebraska families so that economic self-sufficiency is attained in as expeditious a manner as possible through the provision of training, education and employment preparation.

**002. MANDATORY PARTICIPATION.** All individuals who are defined as a work-eligible individual are required to participate in the Employment First program.

002.01 WORK-ELIGIBLE INDIVIDUAL. The following are included in the definition of a work-eligible individual:

- (A) An adult receiving Aid to Dependent Children cash assistance;
- (B) A minor parent who is the head-of-household receiving Aid to Dependent Children cash assistance;
- (C) A non-recipient parent living with his or her child(ren) who is receiving Aid to Dependent Children cash assistance and whose needs are not included in the Aid to Dependent Children budget with a reason of:
  - (i) Convicted drug felon;
  - (ii) Third Party Medical sanction;
  - (iii) Intentional Program Violation sanction;
  - (iv) Fleeing felon;
  - (v) Social Security Number sanction; or
  - (vi) Misrepresenting Residence sanction.
- (D) A dependent child age 16, 17, or 18 who quits school or reduces hours under full-time status according to the educational institution's standards. This dependent child remains a work-eligible individual even if he or she returns to school.

002.02 EXCLUDED FROM THE DEFINITION OF A WORK-ELIGIBLE INDIVIDUAL. The following are excluded from the definition of a work-eligible individual:

- (A) A minor parent who is not head-of-household;
- (B) A non-recipient parent living with his or her child(ren) who is receiving Aid to Dependent Children cash assistance when the parent is a non-citizen and ineligible to receive Aid to Dependent Children cash assistance due to his or her immigration status;

(C) A parent providing care for a disabled family member living in the home who does not attend school on a full-time basis;

(D) An individual in a family receiving assistance under an approved Tribal Temporary Assistance for Needy Families program;

(E) A non-recipient parent living with his or her child(ren) who is receiving Aid to Dependent Children cash assistance when the parent is receiving Supplemental Security Income or Social Security Disability Insurance; or

(F) A dependent child age 16, 17, or 18 who is a full-time student and regularly attending an elementary or secondary school according to the educational institution's standards, or a dependent child age 16 or 17 who is a full-time student and regularly attending college. If the child is enrolled full-time for the next school term, the child's attendance in the first month of the school term must be verified.

002.03 MINIMUM HOURS OF PARTICIPATION. Only actual hours of participation can count towards the minimum number of hours of participation required in approved Employment First component activities.

002.03(A) SINGLE-PARENT AND NEEDY CARETAKER FAMILIES. An individual is required to participate a minimum of 30 hours per week in approved Employment First component activities. An individual counts as engaged in the minimum number of hours required for a month if he or she participates in approved Employment First component activities during the month for at least an average of 30 hours per week. At least 20 hours per week must come from participation in core activities. Above 20 hours per week can come from non-core activities.

002.03(B) SINGLE-PARENT AND NEEDY CARETAKER WITH A CHILD BETWEEN 12 WEEKS AND SIX YEARS OF AGE. A single custodial parent or needy caretaker relative, guardian, or conservator whose youngest child is at least 12 weeks but under six years of age is required to participate a minimum of 20 hours per week in approved Employment First component activities. An individual counts as engaged in the minimum number of hours required for a month if he or she participates in approved Employment First component activities during the month for at least an average of 20 hours per week. At least 20 hours per week must come from participation in core activities.

002.03(C) TWO-PARENT FAMILIES. Two-parent families are required to participate a minimum of 35 combined hours per week. Participation must be in approved Employment First component activities. A two-parent family counts as engaged in the minimum number of hours required for a month if the parent(s) participate in approved Employment First component activities during the month for at least an average of 35 combined hours per week. For a two-parent household at least 30 hours per week must come from participation in core activities. Above 30 hours a week can come from non-core activities.

002.03(C)(i) MINOR PARENT HEAD-OF-HOUSEHOLD. A minor parent head-of-household in a two-parent family when the other parent is also a minor is required to participate a minimum of 30 hours per week in approved Employment First component activities. A minor parent head-of-household counts as engaged in the minimum number of hours required for a month if he or she participates in approved Employment First component activities during the month for at least an average of 30 hours per week. At least 20 hours per week must come from participation in core activities. Above 20 hours per week can come from non-core activities.

002.03(D) SPECIAL RULE FOR EDUCATION. The following applies to individuals age 19 or younger who are a single-parent, a needy caretaker head-of-household, or a parent in a two-parent family. It also applies to dependent children who are required to participate in the Employment First program.

002.03(D)(i) The individual is deemed to have met the minimum number of hours of participation required for the month if he or she is maintaining satisfactory full-time attendance in the Satisfactory Attendance at Secondary School or in a Course of Study Leading to a Certificate of General Equivalence component during the month.

002.03(D)(ii) An individual is deemed to have met the minimum number of hours of participation required for the month if he or she or she is participating in the Education Directly Related to Employment component for at least 20 hours per week during the month.

**003. EXEMPTIONS FROM EMPLOYMENT FIRST.** An individual who meets the exemption criteria described below is not required to participate in Employment First component activities and becomes non-time limited for the period of time he or she qualifies for the exemption. The individual must assist the Department to gather documentation to substantiate the request for each individual's exempt status. An individual becomes mandatory to participate in the Employment First program the first of the month following the month in which he or she no longer qualifies for the exemption.

003.01 INCAPACITY. A person who meets incapacity requirements as follows may qualify for an exemption. An individualized service plan must be developed with the individual who qualifies for exemption. A two-parent family with one parent who qualifies for this exemption must be considered a single-parent and needy caretaker family for purposes of determining the minimum hours of participation.

003.01(A) SHORT-TERM. Short-term exemption may be granted for an individual who has an illness or injury serious enough to temporarily prevent them from entering employment and participating in another Employment First component activity for up to three months. The illness or injury must be evaluated in the context of activities available through the Employment First program.

003.01(B) LONG-TERM. Long-term exemption may be granted for an individual who is incapacitated with a medically determinable physical or mental impairment which, by itself or in conjunction with age, prevents the individual from entering employment or participating in another Employment First component activity and which is expected to exist for a continuous period exceeding three months. The incapacity must be evaluated in the context of activities available through the Employment First program.

003.02 AGE 65 OR OLDER. An individual age 65 or older. This individual is no longer subject to Employment First or the time limit.

003.03 CARE ATTENDANT. A parent who is needed in the home on a continuous basis to provide care for a disabled family member living in the home who does not attend school on a full-time basis and no other appropriate member of the household is available to provide the needed care. There must be medical documentation and a signed statement from a licensed medical professional to support the need for the parent to remain in the home to care for the disabled family member. The disability of the family member being cared for must be evaluated at least every six months, depending on the diagnosis and prognosis for recovery, in order to determine if the parent is still needed in the home to provide care for the disabled family member.

003.04 PARENT OR CAREGIVER OF AN INFANT. A parent or needy caretaker relative, guardian, or conservator of a child under the age of 12 weeks. This exemption can be extended if a written statement from the attending physician states the parent requires additional postpartum recovery time, or special medical conditions of the child requires the presence of at least one parent or needy caretaker relative, guardian, or conservator. In an Aid to Dependent Children unit composed of a grandparent, a minor parent, and the minor's child, only the minor parent is eligible for this exemption. In a two-parent household, only one parent can qualify for this exemption.

003.05 PREGNANCY. A pregnant woman beginning the first of the month before the month of the mother's due date.

003.06 UNAVAILABILITY OF CHILD CARE. A single parent or needy caretaker who is unable to participate because he or she cannot obtain child care that is, or can be, licensed or approved by the Department for his or her child age five or younger. It is the individual's responsibility to prove that he or she cannot obtain child care. In order to qualify for this exemption, one of the following reasons must be met:

(A) Unavailability of appropriate child care within a reasonable distance from the individual's home or work site, based on the normal commuting time for the area but not exceeding two hours round trip; or

(B) Unavailability or unsuitability of informal child care by a relative or under other arrangements.

**003.07 DOMESTIC VIOLENCE.** A victim of domestic violence may be exempt from Employment First. All Employment First participants are screened for domestic violence. A victim of domestic violence is defined as someone who is battered or subject to extreme cruelty. For an individual to qualify for this exemption, it must be determined that participation in Employment First would make it more difficult for the individual to escape domestic violence, would penalize the individual, or would put him or her at risk of further domestic violence. An individualized service plan must be developed with the individual who qualifies for exemption. The following criteria must be met for domestic violence exemptions:

- (A) An individual is considered to be battered or subjected to extreme cruelty if he or she has been subjected to:
  - (B) Physical acts that resulted in, or threatened to result in, physical injury to the individual;
  - (C) Sexual abuse;
  - (D) Sexual activity involving a dependent child;
  - (E) Being forced as the caretaker relative of a dependent child to engage in nonconsensual sexual acts or activities;
  - (F) Threats of, or attempts at, physical or sexual abuse;
  - (G) Mental abuse;
  - (H) Neglect or deprivation of medical care; or
  - (I) Stalking.
- (i) In order to qualify for this exemption, the individual must have an assessment for domestic violence. There must be verification of the domestic violence; and
  - (ii) This exemption is granted for a period of up to six months. Additional periods may be granted for up to six months per period depending on the participant's needs and service plan, but the participant's eligibility for exemption must be reassessed before the Department may grant any additional exemption period.

**004. VOLUNTARY PARTICIPATION.** An individual who qualifies for an exemption from participation in Employment First may elect to volunteer to participate in the Employment First program. The time limit does not apply until the individual no longer qualifies for an exemption. Any resulting failure to participate in the activities agreed upon in the Self-Sufficiency Contract would restrict the individual from participating and depending on his or her status he or she may be subject to a sanction.

**005. ORIENTATION.** Orientation to Employment First may be accomplished in the following two phases:

(A) The first phase may be performed at the time of application for Aid to Dependent Children. The Department highlights the responsibilities that the applicant will be expected to fulfill if he or she is determined eligible for Aid to Dependent Children; and

(B) The second phase of orientation to Employment First is done as an introduction to the comprehensive assets assessment. The individual must receive detailed information on all Employment First requirements, program expectations, participation options, services, and time limits.

**006. ASSETS ASSESSMENT.** The individual must participate in agency or vendor-provided assessment(s) designed to provide a framework for self-sufficiency planning. The purpose of assessment is to gather and organize information about the individual's skills, aptitudes, strengths, barriers, interests and family circumstances. Assessment must be conducted when a participant's circumstances change, when he or she is not able to continue forward movement in his or her Self-Sufficiency Contract activities, or at any time the Department or the participant determines it is necessary. The purpose of the assessment is to:

(A) Identify individuals who may be exempt;

(B) Assign participants to work activities based upon their level of employability and work interests; and

(C) Identify barriers to participation and work.

**007. SELF-SUFFICIENCY CONTRACT.** Based on the results of assessment, the Department and the individual will develop a Self-Sufficiency Contract that includes an individualized Service Plan. The Self-Sufficiency Contract should stress urgent action toward economic self-sufficiency. The Self-Sufficiency Contract will identify the goals to be achieved and will include time lines and benchmarks that facilitate forward momentum. Each mandatory adult and minor parent will outline his or her path to achieving economic self-sufficiency. The responsibilities, roles, and expectations of the individual, the Department, and all other service providers must be detailed in the Self-Sufficiency Contract. The Self-Sufficiency Contract is to be used as a flexible tool. If the participant is not achieving progress in his or her Self-Sufficiency Contract, it should be evaluated and changed accordingly. Adjustments to the goals, components, or scheduled activities within components may be necessary as a result of changes in labor market conditions, or a variety of individual circumstances. The Self-Sufficiency Contract is a binding document to be signed by the individual and by the person representing the Department. By signing the Self-Sufficiency Contract, the individual signifies his or her agreement with the terms and conditions of the Self-Sufficiency Contract.

**008. COMPONENTS.** Components make up the menu of activities that the participant and the Department choose from when developing the Self-

Sufficiency Contract. Activities that the participant engages in should build on his or her strengths, help to remove barriers to self-sufficiency and prepare him or her for entry into the labor market. Successful completion of activities within the components should build momentum and forward movement toward the achievement of the participant's vocational goal and eventual self-sufficiency. A participant may participate in one or more core activities at a time or a combination of core and non-core activities at the same time in order to comprise full-time participation. Each component activity is reflected as a separate element in the Self-Sufficiency Contract. Participation in component activities must be supervised. Participation hours must be tracked, documented and verified.

008.01 CORE ACTIVITIES. At least 20 hours per week must come from participation in the following core activities.

008.01(A) UNSUBSIDIZED EMPLOYMENT. The employment may be full or part-time in the public or private sector and is not subsidized by Temporary Assistance for Needy Families or any other public program. Employment must consist of work for pay. Pay must not be less than the state minimum wage.

008.01(A)(i) MICROBUSINESS ENTERPRISE. When a microbusiness enterprise is included in the Self-Sufficiency Contract, the individual should be referred to an entrepreneurial assistance program. In order for the Self-Sufficiency Contract to contain this component activity, an assessment of the likelihood of business success must be obtained and benchmarks established to assess measurable progress, including profits and continued likelihood of achieving economic self-sufficiency within the individual's time limits.

008.01(A)(ii) APPRENTICESHIP. An apprenticeship may be applied for and entered into with a trade organization. An individual participating in an apprenticeship must complete the program and be fully employed in the trade within the individual's time limit. An apprenticeship program cannot be included in the Self-Sufficiency Contract if the individual has a skill that can be marketed and can be reasonably expected to provide a wage leading to economic self-sufficiency in the current, area-specific labor market and the client is physically, mentally and emotionally able to utilize those skills through employment.

008.01(B) SUBSIDIZED PRIVATE AND PUBLIC SECTOR EMPLOYMENT. The subsidized employment component is employment in the public or private sector for which the participant is paid wages, while the employer receives a temporary subsidy from Temporary Assistance for Needy Families or other public funds to offset some or all of the wages and costs of employing a participant. Subsidized employment provides the participant with an opportunity to gain job skills and experience. The goal of this activity must be to prepare participants for and assist them in securing permanent unsubsidized employment and achieving economic self-sufficiency. During the subsidized period the employer must provide necessary training, guidance, and direction to the

participant. For worker protection, see regulation later in this chapter.

008.01(C) WORK EXPERIENCE. The work experience component is structured unpaid work in any public, private, for-profit, or nonprofit business or organization. The purpose of the work experience activity is to improve the employability of participants who have been assessed as not being job ready or cannot find unsubsidized employment by providing an individual with an opportunity to acquire the general workplace skills, training, knowledge, and work habits necessary to obtain unsubsidized employment. The goal of work experience is to prepare participants for and move them into unsubsidized employment or other component activities that can help in this transition. Other component activities may be combined with work experience. A work experience placement must not exceed six months.

008.01(C)(i) REQUIREMENTS. The Department must have a written agreement with the work site. Daily supervision is required. The hours of participation in a work experience activity must be detailed in the agreement and the Self-Sufficiency Contract.

008.01(C)(ii) SELECTION CRITERIA AND PLACEMENT. The participant's vocational interests and goals, job skills, training, education, work history, experience, and limitations must be taken into consideration so that the participant can be matched to the appropriate work site. The Department recommends the participant to the work site. The potential work site personnel then have the option of interviewing the participant.

008.01(C)(iii) SCHEDULING, TIME AND ATTENDANCE. The Department is responsible for coordinating with the work site and participant for the number of hours and the days the participant will participate. Participants are required to report to their work site as scheduled, following the business' rules and regulations regarding timeliness, attendance and absences. Time and attendance records for participants are maintained by the work site as they are for regular employees. Time sheets and progress reports must be submitted to the Department at the end of each week.

008.01(C)(iv) COMMUNICATION WITH THE WORK SITE. Communication with the work site must be maintained on a regular basis. The work site must notify the Department immediately if there is a problem with an individual's participation.

008.01(C)(v) TERMINATION OF ASSIGNMENT. If the work site determines that a participant is unsuitable for the assignment, the work site must inform the Department immediately. The participant may then be reassigned to another work site. Termination from a work site is not considered nonparticipation unless the participant failed or refused to participate without good cause.

008.01(C)(vi) REVIEW OF PLACEMENT. The effectiveness of a participant's placement must be reviewed regularly. If the



assignment is determined to be inappropriate or ineffective, the Self-Sufficiency Contract must be reviewed.

008.01(C)(vii) PARTICIPANT PROTECTION. Work experience and community service participants are insured by the Department against injury on the work site.

008.01(C)(viii) WORKER PROTECTION. No work experience, on-the-job training, subsidized employment, or community service placement may result in the displacement of or infringement of promotional opportunities of any currently employed worker, nor will an assignment be made to fill a position when the employer has reduced its work force with the effect of filling the vacancy with a participant subsidized by the program or when any other individual is on layoff from the same or equivalent job within the same organizational unit. Regular employees or their representatives may register complaints with the Department that the assignment of an individual violates the previously described provisions. The Department offers the individual a conciliation period of up to 30 days in which to resolve the dispute. The conciliation process includes a face-to-face interview or telephone conference with a Department representative. This process may be initiated by either the Department or the employee. If the conciliation process does not resolve the issue, the dissatisfied employee may file a request for a formal hearing.

008.01(C)(viii)(1) HEARING PROCESS. The hearing process must not exceed 90 days from the date of the complaint, by which time the complainant must be provided the written decision by the department. The Department's hearing portion of the grievance procedure must provide the following:

- (a) A written notice of the date, time, and place of the hearing;
- (b) A hearing on the record;
- (c) An opportunity to present evidence, bring witnesses, and cross examine witnesses;
- (d) Representation by counsel at the discretion and cost of the employee; and
- (e) A written decision.

008.01(C)(viii)(2) APPEAL TO ADMINISTRATIVE LAW JUDGES. The written decision may be appealed by any dissatisfied party within 20 days of the receipt of the Department's written decision. The appeal must be sent to the Office of Administrative Law Judges, U.S. Department of Labor, Vanguard Building, Room 600, 1111 20<sup>th</sup> Street NW, Washington, D.C. 20036. Copies of the appeal and any brief in support of it must be sent to the

Assistant Secretary for Employment and Training, U.S.  
Department of Labor, 200 Constitution Avenue, NW, Washington,  
D.C. 20210 and to the Assistant Secretary for the Administration  
for Children and Families, Department of Health and Human  
Services, 370 L'Enfant Promenade, SW, 6<sup>th</sup> Floor, Washington,  
D.C. 20447. The appeal must contain:

- (a) The full name, address, and telephone number of the appellant;
- (b) The provisions of the Social Security Act of regulations believed to have been violated;
- (c) A copy of the original complaint filed with the Department; and
- (d) A copy of the Department's findings and decision regarding the appellant's complaint.

008.01(C)(ix) RIGHTS AND BENEFITS. Work experience participants are treated as regular employees of the work site to which they are assigned. The work site provides supervision of clients in accordance with the policies and procedures used for regular employees including orientation, absenteeism, disciplinary actions, and terminations. At the time of assignment the work site personnel policies and procedures relating to these topics should be discussed or provided in writing by the work site personnel. The work site must maintain reasonable work conditions which are not in violation of federal, state, or local health and safety standards. The work site must not discriminate against any participant because of race, religion, color, sex, physical handicap unrelated to the participant's ability to perform the work, or national origin or ancestry.

008.01(D) ON-THE-JOB TRAINING (OJT). The basic principles which govern an On-the-Job Training placement are:

- (i) An On-the-Job Training can be developed in the public or private sector;
- (ii) An assessment of the participant must determine that he or she is job ready;
- (iii) The participant is first hired by the employer on a full-time basis;
- (iv) The Department must have a written contract with the employer;
- (v) Daily supervision is required;
- (vi) The participant is provided training which gives the knowledge and skills essential to the full and adequate performance of that job;

(vii) The participant is compensated at a wage, plus fringe benefits, as applicable, including periodic increases, comparable to that of other employees performing the same or similar jobs. The employer and the sponsoring agency negotiate a contract in which the employer will be reimbursed up to 50 percent of the hourly wage for actual hours worked for a set period of time, not to exceed six months to help offset the cost of training;

(viii) The wage reimbursement rate and length of the on-the-job training are contingent upon the nature and complexity of the work and how much training is actually required for the individual to be able to perform the job adequately;

(ix) The on-the-job training may include classroom training, either in the workplace or elsewhere, in job-related basic skills, literacy, English as a Second Language (ESL), or occupational skills training that is required by the employer and would assist the participant to complete his or her assigned duties or upgrade his or her job skills. The classroom hours can count towards hours of on-the-job training participation but are not eligible for wage reimbursement; and

(x) Upon successful completion of the on-the-job training, the employer will continue to employ the participant as a regular employee.

008.01(E) JOB SEARCH/JOB READINESS. Job search and job readiness assistance means the act of seeking or obtaining employment, preparation to seek or obtain employment, including life skills training, and substance abuse treatment, mental health treatment, or rehabilitation activities for those who are otherwise employable. Such treatment or therapy must be determined to be necessary and documented by a qualified medical, substance abuse, or mental health professional. Participation in job search and job readiness is limited to 240 or 360 hours in a 12-month period. The total hourly limit for participation in job search and job readiness activities is 240 hours for a single custodial parent or needy caretaker relative, guardian or conservator of a child under 6 years of age, and 360 hours for all other work-eligible individuals. The 12-month period begins with the first month in which hours of job search or job readiness are counted. Not more than 4 weeks may be consecutive. The 240 or 360 hour limit applies to the job search and job readiness components as a whole, not separately. Daily supervision is required. The Job Search component offers two formats for job search: group job search workshop and independent job search.

008.01(F) COMMUNITY SERVICE. The community service component is a structured program in which the participant performs unpaid work under the auspices of public or nonprofit organizations. Community service programs must be limited to projects that serve a useful community

purpose. Community service programs must include structured activities that both provide a community service and also improve the employability of the participant. Community service programs are designed to improve the employability of participants not otherwise able to obtain employment. The prior training, experience, and job skills of a participant must be taken into account, to the extent possible, in making appropriate community service assignments. For selection criteria and placement, scheduling, time and attendance, communication with the work site, termination of assignment, participant protection, and for worker protection, see regulation earlier in this chapter.

008.01(F)(i) REQUIREMENTS. The Department must have a written agreement with the work site. Daily supervision is required. The hours of participation in a community service program must be detailed in the agreement and the Self-Sufficiency Contract. Short term training or similar activities may be counted as community services as long as such activities are of limited duration and are a necessary or regular part of the community service.

008.01(F)(ii) COMMUNITY SERVICE CALCULATION. The Department is responsible for determining the maximum number of hours of community service allowed for the Employment First participant each week. This is determined by adding the family's Aid to Dependent Children cash payment amount and their Supplemental Nutrition Assistance Program allotment for their Aid to Dependent Children unit size then dividing the total monthly benefit amount by the higher of the federal or state minimum wage.

008.01(G) VOCATIONAL TRAINING. Vocational training is organized educational programs directly related to the preparation of individuals for employment in current or emerging occupations. It may consist of both academic and occupational course work. Basic skills education such as work-focused general education and language instruction may be counted as long as it is a necessary and regular part of the vocational training. Vocational training programs should be limited to activities that give participants the knowledge and skills to perform a specific occupation. The completion of vocational training leads to the attainment of a vocational certificate, diploma, or an Associate degree.

008.01(G)(i) LIFETIME LIMIT. Vocational training is limited to that which is directly related to the fulfillment of an individual's vocational goal. Participation in vocational training cannot exceed 36 months in a lifetime for any individual. Vocational training programs that can be included in the Self-Sufficiency Contract must be for occupations that facilitate economic self-sufficiency. In order for vocational training to be included in the Self-Sufficiency Contract, the participant must demonstrate that the training program will lead to economic self-sufficiency within the individual's time limits. The participant and the Department must have substantiating labor market information.

008.01(G)(ii) ADDITIONAL MARKETABLE SKILL. A vocational training program cannot be included in the Self-Sufficiency Contract if the participant has a skill that can be marketed and can be reasonably expected to provide a wage leading to economic self-sufficiency in the current, area-specific labor market and the participant is physically, mentally and emotionally able to utilize those skills through employment. The Department may need to assist the participant in this process.

008.01(G)(iii) FINANCIAL AID. Before vocational training can be approved and included in the Self-Sufficiency Contract, the participant must apply for student financial aid, unless the program is not eligible for student financial aid, or have other financial resources available to pay for the cost of training. If the participant is ineligible for student financial aid because of a default on a student loan, the Self-Sufficiency Contract cannot contain vocational training until the loan is rehabilitated through arrangements made with the lending institution. The participant may ask for assistance in this process.

008.01(G)(iv) MAINTAINING SATISFACTORY PROGRESS. In order to ensure that participation in vocational training is meaningful and productive, the participant must be in good standing and making good or satisfactory progress in his or her training program using the educational institution's standard. There must be demonstrated progress using a qualitative measure, such as grade point average, and a quantitative measure, such as time frame within which the individual is expected to complete his or her training program. The Self-Sufficiency Contract must detail the qualitative and quantitative measures. Daily supervision is required.

008.01(H) PROVIDING CHILD CARE SERVICES TO AN INDIVIDUAL WHO IS PARTICIPATING IN A COMMUNITY SERVICE PROGRAM. An individual who is providing child care services to the children of another Employment First participant to enable him or her to participate in the community service component activity. This activity must be effective in helping move the child care provider toward economic self-sufficiency. The activity should be made meaningful through training, certification or mentoring, and work towards certification as a child care provider and be a first step toward the participant's employment in the child care field. The participant may or may not be paid for services rendered. The individual who is participating in the community service component activity is not required to pay the participant for providing the child care services. The participant should be encouraged to apply to the Department to be an approved provider and receive payment for their services as an approved child care provider. Daily supervision is required.

008.01(I) POST-SECONDARY EDUCATION. Post-secondary education is a specific educational program at a college or university. The completion of post-secondary education leads to the attainment of a baccalaureate

degree. Post-graduate programs may not be approved in the Self-Sufficiency Contract. Post-secondary education is limited to that which is directly related to the fulfillment of an individual's occupational goal. Post-secondary education programs that can be included in the Self-Sufficiency Contract must be for occupations that facilitate economic self-sufficiency. In order for post-secondary education to be included in the Self-Sufficiency Contract, the participant must demonstrate that the educational program will lead to economic self-sufficiency within the individual's time limits. The participant and the Department must have substantiating labor market information. For additional marketable skills, financial aid and maintaining satisfactory progress, see regulation earlier in this chapter. If the participant is ineligible for student financial aid because of a default on a student loan, the Self-Sufficiency Contract cannot contain post-secondary education until the loan is rehabilitated through arrangements made with the lending institution. The participant may ask for assistance in this process.

008.02 NON-CORE ACTIVITIES. Non-core activities cannot count toward participation hours without at least 20 hours per week coming from participation in core activities. If more than 20 hours in a week have been met in a core activity or activities, the following component activities may count towards participation:

008.02(A) JOB SKILLS TRAINING DIRECTLY RELATED TO EMPLOYMENT.

This is defined as training or education for job skills required by an employer to provide an individual with the ability to obtain employment or to advance or adapt to the changing demands of the workplace. This can include customized training to meet an employer's needs or general training that prepares a participant for employment. This can include literacy instruction or language instruction or barrier-removal activities when such instruction is explicitly focused on skills needed for employment or combined in a unified whole with job training. Daily supervision is required. Job skills training may include short-term training programs or coursework designed to refresh, upgrade, advance, or renew job-related skills. Adult Basic Education (ABE) and English as a Second Language (ESL) courses can count as stand-alone activities, but must be combined with a core activity. For additional marketable skills, financial aid and maintaining satisfactory progress, see regulation earlier in this chapter.

008.02(B) EDUCATION DIRECTLY RELATED TO EMPLOYMENT. For an individual who has not received a high school diploma or a certificate of high school equivalency, this is defined as education related to a specific occupation, job, or job offer. This can include Adult Basic Education (ABE) which is basic and remedial education designed to help an individual achieve a basic literacy level, English as a Second Language (ESL), and other courses designed to provide the knowledge and skills for specific occupations or work settings. General Educational Development (GED) can be counted when it is required as a prerequisite for employers or an occupation. Adult Basic Education and English as a Second Language courses can count as stand-alone activities, but must

be combined with a core activity. For additional marketable skills, financial aid and maintaining satisfactory progress, see regulation earlier in this chapter.

008.02(B)(i) SPECIAL RULE FOR STATE CORE-EDUCATION DIRECTLY RELATED TO EMPLOYMENT. A parent, regardless of age, will be considered to have met the minimum number of participation hours required if they are participating in Education Directly Related to Employment for at least an average of 20 hours per week during the month. For purposes of this requirement, Education Directly Related to Employment includes Adult Basic Education (ABE), a General Educational Development (GED) program, or English as a Second Language (ESL). The Adult Basic Education (ABE) and General Educational Development (GED) program must be approved by the Nebraska Department of Education.

008.02(C) SATISFACTORY ATTENDANCE AT SECONDARY SCHOOL OR IN A COURSE OF STUDY LEADING TO A CERTIFICATE OF GENERAL EQUIVALENCE. This is defined as a needy caretaker, specified relative, age 19 or younger, or a dependent child in secondary education, whether an academic or vocational track, the completion of which leads to the attainment of a high school diploma (HSD); or General Educational Development (GED), the completion of which leads to the attainment of a State of Nebraska High School Diploma or certificate of general equivalence. If a dependent child drops out of school when he or she reaches the mandatory education age of 16, a Self-Sufficiency Contract must be developed. However, participation in this component cannot be mandated to the dependent child who drops out of school at the age of 16. For maintaining satisfactory progress, see regulation earlier in this chapter.

**009. SUPPORTIVE SERVICES.** A participant must be provided with allowable and appropriate supportive services to the extent determined necessary by the Department to enable the individual to participate in any Employment First component as agreed upon in the Self-Sufficiency Contract if no other source is available at no cost to the participant or to the agency. The Department must prior approve the use of these funds.

009.01 APPLICANTS. Applicants for Aid to Dependent Children are eligible for supportive services only if they are participating in Employment First orientation, assessment, self- sufficiency planning, and Self-Sufficiency Contract development.

009.02 DURATION OF SERVICES. Case management and necessary supportive services may be provided for the duration of the individual's participation in all Employment First components and, if needed, after the loss of eligibility for Aid to Dependent Children cash assistance if the loss of Aid to Dependent Children was due to earned income, and if the individual was either cooperating with or participating in Employment First at the time.

009.03 REFUSAL TO ACCEPT SUPPORTIVE SERVICES. An applicant or recipient may refuse supportive services. However, the refusal of supportive services must not then be used as a reason for not cooperating with Employment First requirements or participating in Employment First component activities.

009.04 CLOTHING. The purchase of clothing that is necessary for the individual to effectively participate in any of his or her approved component activities as well as for employment may be approved.

009.05 EXPENSES FOR EDUCATION AND TRAINING. The participant must apply for student financial aid before Job Skills Training, Vocational Training or Post-Secondary Education can be approved and included in the Self-Sufficiency Contract, unless the program is not eligible for student financial aid or the participant has other financial resources available to pay for the cost of training.

009.05(A) CERTIFICATE PROGRAMS. Expenses related to training programs that are not covered by student financial aid can be considered if there is no other source of payment.

009.05(B) ADULT EDUCATION PROGRAMS. The registration fee for all approved adult education programs may be authorized.

009.06 EMPLOYMENT EXPENSES. Expenses necessary and required for employment, such as uniforms, special clothing, or tools, may be authorized. There must be verification from the employer that the items required are required for employment. Transportation expenses may be provided until the participant receives their first full pay check from their job. Expenses related to the start-up or development of a business are not allowed.

009.07 MEDICAL SERVICES. Employment-related medical services not covered by Medicaid may be authorized if they are necessary for the client to participate in Employment First activities or accept employment. The participant must have cooperated to establish Medicaid eligibility. Medical services are authorized at Medicaid rates.

009.08 RELOCATION. Expenses related to relocation may be authorized if necessary for the participant to accept employment or participate in an education or training activity. In order to have such expenses authorized it must not be feasible for the participant to commute on a daily basis.

009.09 TRANSPORTATION. The Department may authorize payment for transportation to enable a participant to participate in any Employment First component. Bus tokens or tickets, commercial transportation, gasoline vouchers, car repairs, and relocation assistance are some examples of transportation services that can be provided. Public transportation must be used when available.



009.09(A) VEHICLE REPAIRS. Allowable repairs are those that are necessary for the vehicle to be in safe and reliable operating condition. Cosmetic repairs cannot be authorized. Repairs cannot be authorized if the cost of all repairs during a 12 month period exceeds the value of the vehicle.

009.09(B) VEHICLE PURCHASE. Assistance toward the purchase of an automobile is available for participants who have gained permanent employment for 30 or more hours per week and no other transportation is available. There must be verification that the employment is a permanent position and the participant will be working 30 or more hours per week. There must be documentation that the participant has a valid driver's license. The participant must demonstrate the ability to afford vehicle registration, taxes, insurance, gasoline, maintenance and any vehicle payment not covered by assistance. The participant must have the vehicle inspected by a certified mechanic not employed by the seller to determine the vehicle's mechanical condition and identify needed repairs. To be eligible, the inspection must show the vehicle is safe, reliable and not in need of additional repairs. The selling price of the vehicle must be in line with the fair market value of similar vehicles of the same age, make and model. The amount of assistance available is limited to the minimum amount necessary to allow the participant to purchase the vehicle and the amount of assistance shall not exceed \$5,000.00.

009.09(C) VEHICLE LOAN PAYMENTS. Car payments can be authorized one time in a 12 month period if the participant has a notice of repossession and the payment will resolve the emergency.

009.09(D) COMMERCIAL TRANSPORTATION. Commercial transportation can only be authorized for up to four weeks in a 12 month period.

009.09(E) FUEL AND OIL. Fuel can be provided for transportation to and from the individual's home and the approved activity site. This includes transporting children to and from their child care provider or school if child care transportation by the child care provider or school is not available. There must be documentation that the participant has a valid driver's license, and current insurance and registration for the vehicle being used. An unlicensed participant may receive a gas voucher if the participant uses the gas voucher to contribute to a car pool or reimburse an individual for gas expenses incurred while providing the participant transportation for Employment First purposes. Fuel should not be authorized for participants engaged in AmeriCorps or Federal work study because stipends from these programs are intended to cover transportation expenses.

009.09(F) VEHICLE REGISTRATION. Up to \$500 of the cost of registering a participant's vehicle is allowed if the vehicle is required for participation. The cost of specialty license plates must not be authorized. There must be documentation that the participant has a valid driver's license and insurance.

009.09(G) INSURANCE. Payment of vehicle insurance is limited to a one-time three month premium for basic liability coverage. Full coverage is allowed if the vehicle has a lien on it and the lender requires full coverage. The participant must be the owner of the vehicle.

009.09(H) DRIVER'S LICENSE. The cost of reinstating a driver's license is allowed unless the lost was due to driving while intoxicated or under the influence of drugs.

009.09(I) EXEMPT PUBLIC TRANSPORTATION. Exempt Public Transportation must be utilized prior to all other Transportation if available and appropriate for the participant's circumstances.

009.10 TRANSITIONAL SUPPORTIVE SERVICES. If the family loses eligibility for Aid to Dependent Children due to the individual's earned income and he or she was cooperating or participating in Employment First at that time he or she will be eligible for Transitional Supportive Services. Eligibility will continue for six months beginning the first of the month when they were determined ineligible for Aid to Dependent Children due to earned income. During the first three months the individual is eligible for supportive services that support activities listed in their current service plan. During the entire six months the individual is eligible for supportive services that are determined necessary for the individual to retain their employment.

**010. NONPARTICIPATION.** Nonparticipation may occur only after a client has signed a Self-Sufficiency Contract. Some examples of failing to participate include, but are not limited to:

- (A) Not participating in Self-Sufficiency Contract revisions;
- (B) Not meeting the terms of the Self-Sufficiency Contract;
- (C) Failing to appear for a job interview or follow up on a job opening when the potential job meets the appropriate work criteria;
- (D) Failing to keep appointments with the Department or with another agency providing service to the participant;
- (E) Voluntarily leaving a component activity before its completion;
- (F) Failing or refusing to report on his or her job search as required; or
- (G) Quitting employment or refusing a bona fide offer of employment without good cause.

010.01 GOOD CAUSE. The following are some examples of good cause for failing or refusing to participate in Employment First:

- (1) The participant's illness or incapacitation;
- (2) Incarceration or court-required appearance of the participant;

(3) A family crisis or change in family circumstances which interfere with participation;

(4) Unavailability or a breakdown in transportation or child care arrangements with no readily accessible alternative;

(5) Weather conditions which would prohibit the individual from participating in the prescribed activity;

(6) A wage which results in a net loss of cash income;

(7) Hazardous work conditions;

(8) The participants mental or physical inability to do the job; or

(9) The presence of domestic violence in the participant's life which interferes with his or her ability to secure child care or transportation; his or her ability to attend school, training, or work; or the physical or emotional safety of the participant or his or her child.

010.01(A) NET LOSS OF INCOME- NOT ACCEPTING A JOB. If employment would result in a net loss of cash income, the participant would have good cause for not accepting that job. He or she may still choose to accept the employment, but is not subject to sanction if he or she does not.

010.01(B) NET LOSS OF INCOME- ALREADY EMPLOYED. The participant experiences a net loss of income if the income from employment does not equal the Aid to Dependent Children cash benefit plus work related expenses minus any unearned income received by the family. Work related expenses, not otherwise incurred, are defined as:

(i) Mandatory payroll deductions;

(ii) Transportation, limited to gas and oil and routine maintenance or city bus fare not paid by other sources;

(iii) The portion of child care paid by the participant; and

(iv) Uniforms not paid for by other sources.

010.02 ACTION FOLLOWING NONPARTICIPATION. Before imposing the first or second sanction, the recommendation is reviewed by two Department supervisors. The recommendation for imposing a third sanction must be reviewed by two Department supervisors and approved by a second level Department supervisor. If the participation issue is resolved or good cause is established, no action is imposed. The sanction recommendation must be reviewed to ensure that the Department representative has:

(1) Reviewed the contracted activities to assure that they are reasonable and appropriate; and that they are consistent with the participant's

physical and mental abilities;

(2) Discussed the nonparticipation issue with the participant to determine whether there was good cause for his or her failure to refusal to participate; and

(3) Worked with the participant to assist them in removing any barriers to participation.

010.02(A) FAILURE TO PARTICIPATE IN EMPLOYMENT FIRST. If the parent fails or refuses to participate in Employment First without good cause, the result is the loss of Aid to Dependent Children cash assistance for the entire family. In a two-parent family, failure or refusal to participate in Employment First without good cause by one parent will result in the loss of Aid to Dependent Children for the entire family. If the needy caretaker relative, guardian, or conservator who is not a parent fails or refuses to participate in Employment First without good cause, the result is the removal of the caretaker's needs from the Aid to Dependent Children unit. If a dependent child age 16, 17, or 18 fails to attend school and fails or refuses to participate in any other Employment First component without good cause, the result is the removal of the child's needs from the Aid to Dependent Children unit.

010.02(A)(i) SANCTION FOR MANDATORY PARTICIPANT'S FAILURE OR REFUSAL TO PARTICIPATE. A sanction is effective the first of the specified month following adequate and timely notice. A waiver of receipt of Aid to Dependent Children once a sanction notice has been mailed does not prohibit the sanction from taking effect.

010.02(A)(i)(1) LENGTH OF A SANCTION. There is no minimum penalty period for a sanction imposed upon a needy caretaker relative, guardian, conservator, or dependent child. The sanction will last until the failure to participate ceases. If the individual who has failed or refused to participate in Employment First is a parent, the sanctions will be as follows:

(i) The first imposition of a sanction will last one month or until the failure to participate ceases, whichever is longer.

(ii) The second sanction will last for three months or until the failure to participate ceases, whichever is longer.

(iii) The third and subsequent sanctions must not be imposed without a second-level supervisory review. This sanction will last for a minimum of 12 months or until the failure to participate ceases, whichever is longer.

010.02(A)(i)(1)(a) QUALIFICATION FOR AN EXEMPTION. If the parent qualifies for an exemption at any time during the sanction period, the exemption will be granted and the sanction will be lifted. If during the first month of the penalty period, the Aid to Dependent Children will resume effective

the first day of the month during which the parent qualifies for the exemption. If after the first month of the penalty period, the Aid to Dependent Children is prorated from the date of the new application for Aid to Dependent Children. If the needy caretaker relative, guardian, conservator, or dependent child qualifies for an exemption, the exemption will be granted and the sanction will be lifted. The Aid to Dependent Children for the individual is prorated from the date the individual qualifies for the exemption. Once a sanction has been lifted due to the participant qualifying for an exemption, the sanction cannot be re-imposed once the individual no longer qualifies for the exemption.

010.02(A)(i)(2) LIFTING OF SANCTION. Once a sanction is imposed, Aid to Dependent Children cannot be reinstated unless the participant qualifies for an exemption or exhausts the minimum penalty period prescribed for that sequence of sanction and fulfills the participation requirement. The participant must engage in the component activity or activities included in his or her Self-Sufficiency Contract or in another activity mutually agreed upon for a minimum of five consecutive work days in order to demonstrate his or her willingness to participate. The participant may receive supportive services while engaging in the required activity or activities. If the individual does not complete the five days of activity, his or her request is no longer valid. If the parent successfully fulfills the participation requirement, the sanction will be lifted and the Aid to Dependent Children prorated from the date of the new application for Aid to Dependent Children. If the parent submits a new application for Aid to Dependent Children before the minimum penalty period has been served and successfully fulfills the participation requirement, the Aid to Dependent Children will resume the first day of the month following the end of the minimum penalty period. If the needy caretaker relative, guardian, conservator or dependent child successfully fulfills the participation requirement, the sanction will be lifted, and the Aid to Dependent Children for the individual will resume effective the date he or she requested the sanction be lifted.

010.02(A)(i)(3) ACTION FOLLOWING A VOLUNTEER'S FAILURE OR REFUSAL TO PARTICIPATE. When a volunteer fails or refuses to participate in the activities agreed upon in the Self-Sufficiency Contract, his or her status should be examined. If the volunteer would actually be a mandatory participant when the failure to participate occurred, a sanction may be imposed. If the individual still qualifies as a volunteer, he or she returns to exempt status and there would be no monetary sanction if he or she fails or refuses to participate in Employment First. The volunteer is considered to be participating once he or she engages in the component activity to which he or she previously agreed in the Self-Sufficiency Contract or in another activity mutually agreed upon for a minimum of five consecutive work

days in order to demonstrate his or her willingness to participate. The voluntary participant may receive supportive services while engaging in the assigned activity. If the voluntary participant does not complete the five days of activity, his or her request to volunteer is no longer valid.

010.03 RIGHT TO APPEAL. Employment First participants have the right to mediation or appeal:

(1) The determination by the Department that the individual has not complied with Employment First requirements or with terms of the Self-Sufficiency Contract; or

(2) The participant's contention that the Department has not complied with the terms of the Self-Sufficiency Contract.

010.03(A) CONTINUATION OF BENEFITS. The Aid to Dependent Children and Employment First supportive services must not be reduced or terminated pending mediation or the appeal hearing if the individual requests mediation or a fair hearing within ten days following the date the notice of adverse action is mailed and the participant does not refuse continued assistance.

010.03(B) MEDIATION AS A RESULT OF A NOTICE OF ADVERSE ACTION. The individual must request mediation within 90 days following the date the notice of adverse action is mailed. Mediation may be requested in writing. The individual may request mediation services by calling or writing the Department or the mediation center that serves the county in which the participant resides. The Department may also request mediation. The participant has the choice whether to participate in mediation.

010.03(C) MEDIATION NOT AS A RESULT OF A NOTICE OF ADVERSE ACTION. If the individual is dissatisfied with the Department representative's action or inaction, the individual may request a conference with the representative's supervisor. If the individual continues to disagree with the supervisor's conclusion, he or she has 30 days in which to request mediation. If the individual does not choose to confer with the supervisor, the individual has 30 days from the date of the Department representative's action or inaction or the date the individual became aware of the representative's action or inaction to request mediation.

010.03(D) CONCLUSION OF MEDIATION. When the mediation has concluded, the mediator notifies the individual and the Department in writing. If the individual is dissatisfied with the result of mediation, he or she has five days from the date of notification from the mediator to request a fair hearing for an issue that may be appealed.

011. TIME LIMIT FOR AID TO DEPENDENT CHILDREN. Aid to Dependent Children recipient families that include an adult or minor parent who meets the definition of a work-eligible individual are subject to the time limit, unless otherwise

exempt. Families subject to the time limit may receive an Aid to Dependent Children for which they are eligible for a total of 60 months in a lifetime. The 60-month lifetime limit begins with the first month the family is determined to be eligible for and receives Aid to Dependent Children. When one parent in a two-parent household reaches their 60-month lifetime limit, the result will be the loss of Aid to Dependent Children for the entire family. Temporary Assistance for Needy Families received from another state will apply towards the family's 60-month lifetime limit. The benefit state's policies will determine which months count towards the federal 60-month lifetime limit.

011.01 SITUATIONS WHERE THE AID TO DEPENDENT CHILDREN IS NOT LIMITED TO 60 MONTHS. The receipt of Aid to Dependent Children is not limited to 60 months if:

- (1) The Department establishes that there is no job available to the participant where the unearned income and the net earned income would exceed the Aid to Dependent Children payment level. This does not apply where the participant has voluntarily quit or failed to accept a job offer without good cause or has been sanctioned for failure to comply with the job-related requirements of the Self-Sufficiency Contract;
- (2) Without Aid to Dependent Children cash assistance the family would not have sufficient funds to avoid extreme hardship;
- (3) The adult or minor parent head-of-household is no longer able to meet the conditions of the Self-Sufficiency Contract;
- (4) The Department has failed to meet the terms of the Self-Sufficiency Contract; or
- (5) The Department has determined that the family is incapable of achieving total economic self-sufficiency because of the mental or physical conditions, or intellectual limitations of the adult or minor parent.

011.01(A) EXTREME HARDSHIP. A family is considered to be suffering from extreme hardship if they do not have adequate cash resources to meet the costs of the basic needs of food, clothing, and housing without assistance or the child or children are at risk of losing care by and residence with their parent(s) or usual caretaker. A family is considered to have inadequate cash resources if their unearned income and net earned income is insufficient to meet their current payment level.

